

25NWCV02647 25NWCV02647

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-07-28

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Case Number: 25NWCV02647 Hearing Date: July 28, 2026 Dept: R

#19

ESCARTIN v. ALDI, ET AL.

CASE

NO.: 25NWCV02647

HEARING: Tuesday, July 28, 2026, at 9:30 AM

I.

Defendant AI CALIFORNIA LLC's Motion to Compel Plaintiff

FILIBERTA ESCARTIN's Response to Form Interrogatories, Set One is GRANTED.

II.

Defendant AI CALIFORNIA LLC's Motion to Compel Plaintiff

FILIBERTA ESCARTIN's Response to Special Interrogatories, Set One is GRANTED.

III.

Defendant AI CALIFORNIA LLC's Motion to Compel

Plaintiff FILIBERTA ESCARTIN's Response to Request for Production of Documents,

Set One is GRANTED.

Moving

Party to give Notice.

Background

Defendant

AI CALIFORNIA LLC

("Defendant") moves to: Compel Plaintiff FILIBERTA ESCARTIN's ("Plaintiff") Response to (1) Request for Production of Documents, Set One; (2) Special Interrogatories, Set One and (3) Form Interrogatories, Set One.

Legal

Standard

"If a party

to whom a demand for inspection, copying, testing, or sampling is directed

fails to serve a timely response to it, the following rules shall apply: (a)

The party to whom the demand... is directed waives any objection to the demand,

including one based on privilege or on the protection for work product.... The

court, on motion, may relieve that party from this waiver on its determination

that both of the following conditions are satisfied: (1) The party

has subsequently served a response that is in substantial

compliance.... (2) The party's failure to serve a timely response

was the result of mistake, inadvertence, or excusable neglect." (CCP

§2031.300.)

"If a party

to whom interrogatories are directed fails to serve a timely response, the

following rules apply: (a) The party to whom the interrogatories are directed

waives any right to exercise the option to produce writings under Section

2030.230, as well as any objection to the interrogatories, including one based

on privilege or on the protection for work product.... The court, on motion, may

relieve that party from this waiver on its determination that both of the

following conditions are satisfied: (1) The party

has subsequently served a response that is in substantial

compliance.... (2) The party's failure to serve a timely response was

the result of mistake, inadvertence, or excusable neglect." (CCP

§2030.290.)

If a party

to whom interrogatories and document demands are directed fails

to respond at all, the propounding party's remedy is to seek a court order

compelling answers thereto. (CCP §§ 2030.290, 2031.300.) All that needs to be

shown is that the discovery was properly served on the opposing party, that the

time to respond has expired, and that no response of any kind has been served.

The moving party is not required to show a reasonable and good faith

attempt to resolve the matter informally before filing this motion. A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (See *Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404.)

On

April 10, 2026, Defendant propounded onto Plaintiff the following discovery: Form Interrogatories, Set One; Special Interrogatories, Set One; and Request for Production of Documents, Set One.

Plaintiff's

responses were due on May 12, 2026. Plaintiff failed to provide a response.

Therefore, Defendant's

Motions are GRANTED, and Plaintiff FILIBERTA

ESCARTIN is ORDERED to provide verified responses

and documents, without objection by no later than 30 days from date of the Court's issuance of this Order.

This date

may be extended by stipulation of the parties. If any objections are asserted, it will be tantamount to no response at all and will be deemed a violation of this Court's order.

Reasonable

sanctions are GRANTED in the total amount of \$400.00. Plaintiff FILIBERTA

ESCARTIN is ORDERED

to pay Moving Party and their counsel of record sanctions in the total amount of \$400.00, payable within 60 days from the date of the Court's issuance of this Order.